

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

VISUAL COMFORT & CO., *Complainant*

v.

COSCO SHIPPING LINES (NORTH AMERICA) INC.,
Respondent.

DOCKET NO. 24-01

Served: November 20, 2024

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge.*

ORDER REJECTING MOTION TO STRIKE

On November 18, 2024, Respondent COSCO Shipping Lines (North America) Inc. (“COSCO”), filed Respondent’s Motion to Strike “Expert” Report of John D. McCown (“Motion”). This non-dispositive motion is filed two and a half weeks before Respondent’s brief in opposition to the initial brief of Complainant Visual Comfort & Co. (“VCC”) is due.

COSCO’s 24-page motion attaches two exhibits of 37-pages comprising two motions to strike that are pending in two other proceedings in which they are not a party and before a different Administrative Law Judge. Not only would the exhibits burden the record since they are already docketed in their own cases and easily accessible to the undersigned, but they appear to be attached as exhibits solely to extend COSCO’s argument to well over the acceptable page limits.

Rule 71 sets page limits for non-dispositive motions: “Neither the motion nor the response may exceed 10 pages, excluding exhibits or appendices, without leave of the presiding officer.” 46 C.F.R. § 502.71(d). The Motion does not include a request to extend page limits, nor would one be granted. COSCO previously sought exclusion of the September 27, 2024 expert report when it filed a second motion to dismiss and motion to preclude the expert report on October 2, 2024. By Order Denying Respondent’s Second Motion to Dismiss (“Order Denying MTD”) issued on October 8, 2024, the undersigned instructed the parties to address the exclusion of evidence in their briefs:

It is not clear that the revised expert report should be excluded from admission into evidence as it was produced prior to the close of discovery, especially as the Interim Scheduling Order set May 31, 2024, as the date for Complainant to serve **initial** expert reports. Order Setting Status Conference and Interim Scheduling Order at 2 (emphasis added). The March 8, 2024 Scheduling Order, the Interim Scheduling Order, and the September 5, 2024 Amended Scheduling Order do not set dates for or address the production of revised expert reports, and all but the

Interim Scheduling Order adopted the schedule proposed by the parties.
Accordingly, the parties should address this issue in their briefs.

Order Denying MTD at 4 (emphasis in original). Respondent's instant Motion is contrary to the October order. Arguments objecting to VCC's expert and asserting that his deposition and report should be excluded should be addressed in COSCO's opposition brief, not in a separate motion. Moreover, the arguments should be identified in the opposition brief in some clear manner, such as a heading.

Accordingly, and based on all the above, COSCO's motion to strike is **REJECTED WITH PREJUDICE** for failure to comply with Rule 71 and for failure to comply with the Order Denying MTD. The exclusion of the expert's report(s) should be addressed in COSCO's brief, as previously instructed.



Linda S. Harris Crovella
Administrative Law Judge